

Tentative Rulings and Resolution Review Hearings

April 20, 2026

Department 63

This Court does not follow the procedures described in Rules of Court, Rule 3.1308(a). Tentative rulings are available online no less than 12 hours in advance of the time set for hearing. Tentative rulings may be found on the court's website (www.shasta.courts.ca.gov) and are available by clicking on the "Tentative Rulings" link under the "Online Services" tab. A QR code that links to the tentative rulings is posted outside the courtroom. A party is not required to give notice to the Court or other parties of intent to appear to present argument.

Telephonic appearances through CourtCall (888-882-6878; courtcall.com) are generally permitted on the Law & Motion and Resolution Review calendars and can be made without leave of Court.

8:30 a.m. – Law & Motion

APPELBAUM, ET AL. VS. MARQUIS CARE AT SHASTA, ET AL.

CASE NUMBER: 25CV-0208714

Tentative Ruling on Motion to Continue Trial: Defendants move to continue the trial date. Plaintiffs agree and the parties executed a stipulation to that effect. The Court has considered the factors set forth in CRC 3.1332 and **GRANTS** the motion. The trial is continued to **Tuesday, October 6, 2026 at 8:45 a.m. in Department 63.** To accommodate counsel's schedule, the Mandatory Settlement Conference is continued to **Monday, July 27, 2026 at 1:30 p.m. in Department 63.** All discovery deadlines are based on the new trial date. Defendants provided a proposed Order that will be modified to reflect the Court's ruling.

IN RE: BAUGHMAN-SULLIVAN

CASE NUMBER: 26CV-0209754

Tentative Ruling on Petition for Change of Name: Petitioner Izack Jacob Baughman-Sullivan seeks to change his name to Izack Jacob Baughman. No proof of publication has been submitted. The Court requires an original Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

CREDITORS ADJUSTMENT BUREAU, INC. VS. SHANE HUGHES CONSTRUCTION, INCORPORATED

CASE NUMBER: 25CV-0208517

Tentative Ruling on Motion to be Relieved as Counsel: Catherine Delcin of Delcin Consulting Group moves to be relieved as counsel for Defendant Shane Hughes Construction, Incorporated.

CRC Rule 3.1362 provides the requirements for a motion to be relieved as counsel. In particular, CRC 3.1362 requires the use of specific mandatory Judicial Council forms for the Notice and Motion (MC-051) and Supporting Declaration (MC-052). Both forms and the proposed Order (MC-053) must be served on the client and all parties who have appeared in the case at either the current address or the last known address that has been confirmed within thirty days. CRC 3.1362(d). A proof of service was filed for the motion only, not the declaration or the proposed order. Service on Defendant was made by email and United States mail from the State of Florida on March 18, 2026. Electronic service is not permitted on Defendant directly. CCP § 1010.6. Service by mail was untimely as March 31, 2026 was a court holiday. CCP § 1005(b).

The motion is **DENIED** without prejudice for lack of proper notice on Defendant and for not serving all the

required documents on all parties. Should counsel choose to file again, additional efforts will need to be made to confirm the address used for service on Defendant. The proposed Order cannot be modified. Defendant's counsel is to prepare the Order.

IN RE: DIGIUSEPPE

CASE NUMBER: 26CV-0209838

Tentative Ruling on Petition for Change of Name: Petitioner seeks to change the last name of her minor daughter. The Certificate of Publication has been filed. Pursuant to Evid. Code § 452(d), the Court takes judicial notice of the Judgment filed on March 17, 2025 in Case No. 206611. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

ITRIA VENTURES LLC VS. KAMFOLT

CASE NUMBER: 23CV-0203471

Tentative Ruling on Order to Show Cause Re: Dismissal: On March 2, 2026, the Court issued an Order to Show Cause Re: Dismissal to Cross-Complainant Michael Jay Kamfolt, in pro per, for failure to timely serve the Cross-Complaint and failure to timely prosecute the Cross-Complaint. The Cross-Complaint was filed on July 2, 2024 and names all new parties. "A cross-complaint against a party who has appeared in the action must be accompanied by proof of service of the cross-complaint at the time it is filed. If the cross-complaint adds new parties, the cross-complaint must be served on all parties and proofs of service on the new parties must be filed within 30 days of the filing of the cross-complaint." CRC 3.110(c). There is still no Proof of Service of Summons on file for any of the Cross-Defendants. Cross-Complainant did not file a written response to the Order to Show Cause. Monetary sanctions have already been imposed for the delay.

With no sufficient excuse for the delay and because previous sanctions have been ineffective, the Cross-Complaint filed on July 2, 2024 is dismissed without prejudice pursuant to Gov. Code § 68608(b).

OFFICER VS. MID VALLEY PROVIDERS, INC., A CALIFORNIA CORPORATION

CASE NUMBER: 22CV-0201036

Tentative Ruling on Motion for Class Certification: Plaintiff Danielle Officer seeks class certification. Defendant Mid Valley Providers, Inc. opposes the motion.

Evidentiary Objections. Plaintiff objects to eight portions of the Declaration of Debbie Larmour. The Court overrules as to each of the eight objections. Plaintiff objects to 29 portions of the Declaration of Robert Crandall. The Court overrules as to each of the objections with the exception of Objections 12 and 13 which are sustained under Evid. Code § 702 and speculation as to 13 only.

Judicial Notice. Plaintiff requests the Court take judicial notice of six Opinion Letters issued by the DLSE. Defendant did not object. The request granted pursuant to Evid. Code §§ 452 and 453.

Merits. A class action permits persons to sue on behalf of others where it is shown to be necessary and superior to separate lawsuits by or against members of the group individually. CCP § 382 provides authority for class actions: "[W]hen the question is one of a common or general interest, of many persons, or when the parties are numerous, and it is impracticable to bring them all before the court, one or more may sue or defend for the benefit of all." To maintain a class action, certain prerequisite conditions must exist, and the action must be based on one or more permissible grounds.

Under California law, the two basic requirements that must exist to sustain a class action are: the existence of an ascertainable class, and a well-defined community of interest in the questions of law and fact involved. With respect to the community of interest requirement, three separate factors are considered: 1) predominant common